Basic information

2025/0395(COD) COD - Ordinary legislative procedure (ex-codecision procedure) Regulation	Awaiting Parliament's position in 1st reading
Suspending the application of the rules on extended producer responsibility for batteries and waste batteries and packaging and packaging waste (Omnibus VIII on environmental legislation) **Subject** 3.70 Environmental policy 3.70.12 Waste management, domestic waste, packaging, light industrial waste 3.70.13 Dangerous substances, toxic and radioactive wastes (storage, transport) 3.70.20 Sustainable development	

Key players

European Parliament

Committee responsible	Rapporteur	Appointed
ENVI Environment, Climate and Food Safety	TER LAAK Ingeborg (EPP)	11/03/2026
	Shadow rapporteur BURKHARDT Delara (S&D) FRIGOUT Anne-Sophie (PfE) FIOCCHI Pietro (ECR) VASCONCELOS Ana (Renew) PAULUS Jutta (Greens/EFA) FOURREAU Emma (The Left)	

Committee for opinion	Rapporteur for opinion	Appointed
ITRE Industry, Research and Energy	The committee decided not to give an opinion.	
IMCO Internal Market and Consumer Protection	The committee decided not to give an opinion.	

Council of the European Union

European

Commission DG	Commissioner

Commission	Environment	ROSWALL Jessika
European Economic and Social Committee		
European Committee of the Regions		

Key events

Date	Event	Reference	Summary
10/12/2025	Legislative proposal published	COM(2025)0982	Summary
09/02/2026	Committee referral announced in Parliament, 1st reading		
05/10/2026	Vote in committee, 1st reading		
09/10/2026	Committee report tabled for plenary, 1st reading	A10-0266/2026	
19/10/2026	Debate in Parliament		
20/10/2026	Results of vote in Parliament		

Technical information

Procedure reference	2025/0395(COD)
Procedure type	COD - Ordinary legislative procedure (ex-codecision procedure)
Procedure subtype	Legislation
Legislative instrument	Regulation
Legal basis	Treaty on the Functioning of the European Union TFEU 294-p7-ac Treaty on the Functioning of the European Union TFEU 114 Treaty on the Functioning of the European Union TFEU 192-p1
Other legal basis	Rules of Procedure EP 165
Mandatory consultation of other institutions	European Economic and Social Committee European Committee of the Regions
Stage reached in procedure	Awaiting Parliament's position in 1st reading
Committee dossier	ENVI/10/04759

Documentation gateway

European Parliament

Document type	Committee	Reference	Date	Summary
Committee draft report		PE788.916	22/05/2026	
Amendments tabled in committee		PE790.771	01/07/2026	
Committee report tabled for plenary, 1st reading/single reading		A10-0266/2026	09/10/2026	

European Commission

Document type	Reference	Date	Summary
Legislative proposal	COM(2025)0982	10/12/2025	Summary

National parliaments

Document type	Parliament /Chamber	Reference	Date	Summary
Contribution	IT_CHAMBER	COM(2025)0982	01/04/2026	
Reasoned opinion	FR_SENATE	PE786.854	08/04/2026	

Other institutions and bodies

Institution/body	Document type	Reference	Date	Summary
EESC	Economic and Social Committee: opinion, report	CES3982/2025	18/03/2026	
CofR	Committee of the Regions: opinion	CDR0953/2026	07/05/2026	

Additional information

Source	Document	Date
European Commission	EUR-Lex	

Meetings with interest representatives published in line with the Rules of Procedure

Rapporteurs, Shadow Rapporteurs and Committee Chairs

Transparency

Name	Role	Committee	Date	Interest representatives
MARAN Pierfrancesco	Committee chair	ENVI	25/09/2026	EssilorLuxottica
VASCONCELOS Ana	Shadow rapporteur	ENVI	21/09/2026	European Entrepreneurs CEA-PME
VASCONCELOS Ana	Shadow rapporteur	ENVI	08/09/2026	AIM - European Brands Association
VASCONCELOS Ana	Shadow rapporteur	ENVI	24/06/2026	AmCham EU
				APPLiA (Home Appliance Europe) Amazon Europe Core SARL BDE Bundesverband der Deutschen Entsorgungs-, Wasser- und Kreislaufwirtschaft e. V. Computer and Communications Industry Association EXPRA EUROPE ASBL European Branded Clothing Association

PAULUS Jutta	Shadow rapporteur	ENVI	10/06/2026	European Environmental Bureau European Recycling Platform SAS FEAD FEICA - Association of the European Adhesive & Sealant Industry LightingEurope MUST & Partners Policy Hub - Circularity for Apparel and Footwear Reuse and Recycling European Union Social Enterprises The European Organisation for Packaging and the Environment Blätter Verlagsgesellschaft
FIOCCHI Pietro	Shadow rapporteur	ENVI	05/05/2026	Utilitalia, Imprese Acqua Ambiente Energia
FIOCCHI Pietro	Shadow rapporteur	ENVI	05/05/2026	European Recycling Platform SAS
FIOCCHI Pietro	Shadow rapporteur	ENVI	28/04/2026	Meta Platforms Ireland Limited and its various subsidiaries
FIOCCHI Pietro	Shadow rapporteur	ENVI	28/04/2026	FuelsEurope
TER LAAK Ingeborg	Rapporteur	ENVI	22/04/2026	SMEunited aisbl
FIOCCHI Pietro	Shadow rapporteur	ENVI	15/04/2026	Steel for Packaging Europe
TER LAAK Ingeborg	Rapporteur	ENVI	14/04/2026	The LEGO Group
TER LAAK Ingeborg	Rapporteur	ENVI	13/04/2026	EUCOBAT
VASCONCELOS Ana	Shadow rapporteur	ENVI	10/04/2026	Alstom
TER LAAK Ingeborg	Rapporteur	ENVI	09/04/2026	The European Organisation for Packaging and the Environment
TER LAAK Ingeborg	Rapporteur	ENVI	09/04/2026	YARA BELGIUM S.A.
TER LAAK Ingeborg	Rapporteur	ENVI	08/04/2026	Alstom
VASCONCELOS Ana	Shadow rapporteur	ENVI	31/03/2026	EUCOBAT
VASCONCELOS Ana	Shadow rapporteur	ENVI	25/03/2026	CONAI
VASCONCELOS Ana	Shadow rapporteur	ENVI	16/03/2026	Orgalim – Europe's Technology Industries

Other Members

Transparency		
Name	**Date**	**Interest representatives**
LUENA César	14/09/2026	MERCADONA SA
LUENA César	14/09/2026	Seda International Packaging Group
MORETTI Alessandra	24/07/2026	EssilorLuxottica
PEREIRA Lídia	24/06/2026	EssilorLuxottica Meta Platforms Ireland Limited and its various subsidiaries
TOSI Flavio	24/06/2026	META
HADJIPANTELA Michalis	28/04/2026	Consumer-Portion Packaging Innovation Coalition

LUENA César	23/02/2026	eBay EU liaison office

Suspending the application of the rules on extended producer responsibility for batteries and waste batteries and packaging and packaging waste (Omnibus VIII on environmental legislation)

2025/0395(COD) - 10/12/2025 - Legislative proposal

PURPOSE: to suspend the application of the rules on the appointment of an authorised representative for extended producer responsibility for batteries and waste batteries and packaging and packaging waste.

PROPOSED ACT: Regulation of the European Parliament and of the Council.

ROLE OF THE EUROPEAN PARLIAMENT: the European Parliament decides in accordance with the ordinary legislative procedure and on an equal footing with the Council.

BACKGROUND: in its Communication on a Strategy for the Single Market, the Commission identified as a barrier to the internal market that businesses face inconsistent national regulations which make it harder to sell, scale or move goods and services across borders. The Commission identified certain features of extended producer responsibility schemes as one of the barriers most frequently reported by companies operating cross-border in the Union.

While extended producer responsibility schemes are derived from Union legislation, a lack of uniformity of principles and requirements has led to a large diversity of extended producer responsibility schemes set up in Member States as well as to regulatory complexity and high administrative burden for companies.

Due to that **lack of harmonisation**, in particular regarding the current provisions in sectoral legislation for the appointment of an authorised representative for extended producer responsibility, the fulfilment of the obligations related to the appointment may result in an unnecessary administrative burden on producers operating in multiple Member States where they are not established.

The currently fragmented legal framework for different products and the administrative burden associated with fulfilling the requirement to appoint an authorised representative for extended producer responsibility (EPR) in up to 26 Member States is hampering the competitiveness of producers established in the Union. It is thus crucial to harmonise the existing rules effectively and promptly, reducing the associated burdens on such producers.

CONTENT: this proposed Directive aims to **reduce the administrative burden** for producers established in one Member State of the Union selling their products in other Member States, in relation to the participation of these producers in the **extended producer responsibility schemes** in those other Member States, set up under Regulation (EU) 2023/1542 on batteries and waste batteries and under Regulation (EU) 2025/40 on packaging and packaging waste.

Specifically, the proposal aims to **suspend until 1 January 2035**:

(a) the provision in Regulation (EU) 2023/1542 that makes mandatory the appointment of an authorised representative for extended producer responsibility for producers established in the Union and selling batteries by means of distance contracts directly to end-users in another Member State;

(b) the provision in Regulation (EU) 2025/40 that makes mandatory the appointment of an authorised representative for extended producer responsibility for producers established in the Union and making packaging or packaged products available for the first time on the territory of another Member State, directly to end users.

This proposal would provide **additional flexibility** by allowing producers established in the Union and selling products in another Member State to choose whether they appoint an authorised representative for EPR.

Provisions regarding the appointment of authorised representatives for EPR for producers based in third countries should remain as they currently are contained in sectoral legislation.